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WASHINGTON- Congressman Spencer Bachus today sent a letter to House Armed Services Committee Chairman Duncan Hunter requesting that he hold a hearing on the Base Realignment and Closure Commission's decision to realign the 117th Air Refueling Wing and 22 similarly situated air units.

Congressman Bachus was joined by members of the Alabama, Delaware, Michigan, Missouri and Ohio delegations. Some of the concerns the letter expressed were:

Â· While Congress deemed "military value" to be the overriding factor upon which the BRAC recommendations were to be based, six Air National Guard Tanker wings determined to have less military value than Birmingham are remaining in place with some seeing an increase in aircraft.

Â· To date, \$73 million has been spent on Birmingham's infrastructure to make it a world-class tanker base. There is currently space to bed down 13 aircraft, and next year the Birmingham International Airport runway will be lengthened to 12,000 feet, yielding an increased capability that is greater than that of any of the airports to which the 117th ARW aircraft are to be relocated.

Â· The ability of "enclave" bases to sustain expeditious combat units is not clear.

Once flying units are removed, many bases will no longer be able to support military or civilian aircraft operations, and recruitment and retention could be made more difficult.

It is anticipated that another letter, detailing more specific concerns with additional Congressional support, will be sent to Chairman Hunter next week.

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CME: Continuing Medical Education or Commercial Marketing Efforts?

Testimony submitted to the Senate Committee on Aging

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Disclosure: Dr. Fugh-Berman has been a paid expert witness on behalf of plaintiffs in litigation regarding pharmaceutical marketing practices.

Continuing medical education (CME) is the pharmaceutical industry's most important marketing tool. The development of marketing messages for a drug starts seven to ten years before a drug is submitted for FDA approval. Many of the marketing messages that are developed for each product do not mention the drug at all. A 'pre-launch' marketing message might emphasize the importance of a specific physiologic process in order to set the stage for acceptance of a drug that affects that mechanism, or might create an unnecessary diagnostic distinction in order to establish a niche for a drug entering a crowded market.

Selling disease

CME is used to sell drugs by selling diseases. As a marketing article called "Proving the case for investing in CME," states: "*The most significant benefits for industry may include creating disease-state awareness and disease state significance.*"¹ Another marketing article notes that: "*CME activities are most valuable in introducing products early in their life cycles or for promoting mature brands with new indications and new clinical data.*"²

Industry-funded CME often emphasizes the severity or prevalence of specific conditions in order to prepare, or expand, a market.³ Manipulating physicians' understanding of the prevalence or severity of medical conditions can lead to overtreatment, and expose patients to the adverse effects of drugs without significant benefit.

The marketing messages imbedded in CME lectures, articles, on-line modules, and tests are never advertisements for a specific therapy because physicians will reject speakers or articles that obviously favor a specific drug. One marketing message might emphasize the risks of competing therapies; another the lack of evidence regarding an over-the-counter remedy.

CME is often used to promote unproven uses of a drug. While it is illegal for a drug company to promote off-label use of a drug, CME is not considered promotion and is not regulated by the FDA. Physicians can say whatever they want, so are used as mouthpieces for marketing messages that would be illegal coming from a company rep.

The academic physicians involved in industry-funded CME may protest, quite honestly, that they are expressing their independent opinions. However, they are chosen because what they are saying aligns with a product's marketing messages, and are supported only as long as they do so.⁴ A physician who expresses doubts about a

¹ Raichle L. [Proving the case for investing in CME](#). *Medical Marketing & Media*. Jun 1998; 33(6): 84.

² Bottiglieri D. [Crowd Pleaser](#). *Pharmaceutical Executive*. Sep 2001; 21(9): 122.

³ Fugh-Berman A, Melnick D. Off-Label Promotion, On-Target Sales. *PLoS Medicine* 2008;5 (10): e210 <http://medicine.plosjournals.org/perlserv/?request=get-document&doi=10.1371/journal.pmed.0050210>

⁴ Fugh-Berman A. Key opinion leaders: Thus are our medical meetings monitored. *BMJ* 2008;337:a789 http://www.bmj.com/cgi/content/full/337/jul15_1/a789

product's efficacy, concerns about its risks, or enthusiasm for a competing therapy will be unceremoniously dropped from a company's speaker's bureau.

Vetting bias in CME modules

There is little incentive for medical education and communication (MEC) companies or academic medical centers to attempt to ferret out bias in CME modules, because both depend on industry for survival. In 2007, about half of the \$2.5 billion spent on CME came from pharmaceutical manufacturers. Seventy-two percent of the income from events sponsored by medical education companies is from firms that manufacture FDA-regulated products. Academic medical centers are only a little better; 57% of CME income to medical schools comes from industry.

Although academic CME providers do their best to vet industry-funded modules for bias, such review focuses on the detection of obvious advertising, the use of brand rather than generic names, of drugs, and adequate disclosure of conflict of interest. No matter how vigilant they are, CME providers are not trained in recognizing marketing messages and cannot adequately assess industry-funded materials for bias.

As previously noted, marketing begins years before a drug reaches the market. Adequate vetting of CME modules would require knowledge of every drug, biologic, device, and diagnostic test that every company is marketing, developing, or considering. The task becomes even more daunting when mergers, acquisitions, co-marketing agreements and collaborative marketing arrangements for example, among companies selling drugs in the same class) are taken into account. Similarly, disclosures of financial conflicts of interest are impossible to interpret without knowing every company's marketing plan for every drug on the market or in the pipeline.

'Unrestricted' grants

Unrestricted educational grants to academic medical centers or MECs are no solution. Although the new PhRMA Code of Ethics does not allow sponsors (companies that fund the event) to suggest speakers, sponsors may indicate which topics they are interested in funding. "Unrestricted" grants provided for grand rounds and lunch conferences depend on a sense of obligation rather than a quid pro quo. When lists of recommended speakers are supplied to organizers, it is unstated, but nonetheless understood, that company-paid speakers will be included in the lecture series.

The organizing board of the CME program may include speakers selected and paid by the sponsor. The desired messages about particular products or diseases may be made clear. Organizers understand that sponsors or exhibitors may withdraw if they don't like the content. Not every speaker in a lecture series or conference is chosen by industry. Pharmaceutical companies refer to presentations with marketing messages as "message talks," and sponsored CME programs usually include talks that are not connected with the sponsor's product. Although these camouflage talks may involve independent speakers, organizers know that they must avoid inviting speakers who might criticize a sponsor's products or oppose a sponsor's marketing messages³.

Physicians will never hear about how a targeted disease is overdiagnosed or overtreated at a sponsored event. And rarely will they hear positive recommendations

for a competitor's product, a generic product, or a non-pharmacologic therapy at a sponsored program.

ACCME

The ACCME Standards for Commercial Support⁵ to discourage potential conflicts of interest are both weak and ignored. A 2007 annual report by the ACCME, however, showed that 29% of providers failed to comply with Standard 2, which requires that any individuals that control content of a CME activity disclose and resolve conflicts of interest.⁶ 27% of the providers did not comply with Standard 3, which includes guidelines to prevent those with commercial interest from dictating the content of a CME activity. And 36% of providers were noncompliant with Standard 6, which requires that all commercial support and financial relationships of authors be disclosed to CME participants before the activity.⁶

The ACCME does not screen CME activities, and does not encourage audience members to report commercial bias. Although written complaints are accepted, the process is burdensome. The ACCME would not tell us whether or not any providers have lost accreditation status due to commercial bias. Losing accreditation for any reason is rare; according to the annual reports published by the ACCME only one provider lost accreditation in 2005.

Conclusion

If sponsoring CME events did not increase product sales, drug companies would not do it. The large amount of commercial support poured into CME is in itself testimony that industry believes supporting CME is cost-effective. Industry influence on medical discourse limits the discussion to the most profitable therapies, which may not be best for patients. Industry-funded medical education is a contradiction in terms.

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Acknowledgments: Alicia Bell MS, Margaret Infeld, Clare Murphy, Stephanie Waterhouse, and Nicole Woodard provided background research.

About PharmedOut

[PharmedOut](#), a project based at Georgetown University Medical Center, uses academic research and drug industry insider perspectives to educate prescribers about how covert marketing techniques affect prescribing behavior. PharmedOut was launched through a grant from the [Attorney General Consumer and Prescriber Grant Program](#).

Our latest free, web-based, 3-CME credit educational module is called [The Pharmalyzer: Are you prescribing under the influence?](#) Our unique approach draws on academic and marketing materials

⁵ ACCME. Essential Areas and Elements; 2008 Available via the Internet: http://www.accme.org/dir_docs/doc_upload/f4ee5075-9574-4231-8876-5e21723c0c82_uploaddocument.pdf. Accessed June 30, 2009

⁶ ACCME [Standards for Commercial Support; 2008 Available via the Internet: http://www.accme.org/dir_docs/doc_upload/68b2902a-fb73-44d1-8725-80a1504e520c_uploaddocument.pdf. Accessed June 30, 2009.

combined with original interviews with industry insiders to create novel articles, videos, and educational materials. Our goal is to foster evidence-based, cost-effective prescribing and to decrease the adverse public health effects of inappropriate pharmaceutical promotion.

We provide original web-based [CME modules](#) and [links](#) to more than 150 free, non-industry-funded, web-based continuing medical education (CME) courses – enough for any physician, nurse, or pharmacist to complete annual continuing education requirements. Educational resources include our [slideshows](#), [Drug Ad Bingo](#) (a teaching exercise), [Fast Facts on Generic Drugs](#) (a factsheet for patients), and seven original videos, featuring industry insiders. Our [publications](#) include [Off-Label Promotion, On-Target Sales, Following the Script: How Drug Reps Make Friends and Influence Doctors](#), [Do New Drugs Increase Life Expectancy?](#), [Ethical Considerations of Publication Planning in the Pharmaceutical Industry](#), [Prescription Tracking and Public Health](#), [Key Opinion Leaders: Thus Are Our Medical Meetings Managed](#), and [Smoke and Mirrors](#).

ⁱ Raichle L. Proving [the](#) case [for](#) investing [in](#) CME. *Medical Marketing & Media*. Jun 1998; 33(6): 84.

STATE OF ALABAMA - DEPARTMENT OF FINANCE - DIVISION OF PURCHASING

**** PLEASE NOTE: THE FOLLOWING IS FOR INFORMATION ONLY AND DOES NOT INDICATE AN AWARD. ****

RESPONSES TO "INVITATION TO BID"
DATE PRINTED: 07/20/10

SOLICITATION NBR: 2219757 BDU'S

BUYER: BRYAN MATTHEWS

BID OPENING DATE: 07/20/10

LINE NBR	COMM NUMBER	COMM DESC / VENDOR NAME / VENDOR TEXT	U/M	UNIT PRICE / PERCENT
00001	200-72-090597	SHIRT, BDU, LONG SLEEVE, 65% POLYESTER/ 35% COMBED COTTON, RIPSTOP MATERIAL, 2	EA	
		AZARS UNIFORMS INC BRAND: ATLANCO SEE BID	EA MODEL: 1431	\$ 19.45000
		GT DISTRIBUTORS OF GA BRAND: ATLANTCO/TRU-SPEC SEE BID	EA MODEL: 1413	\$ 20.13000
		AWARD EXCELLENCE COMPANY LLC BRAND: ATLANCO SEE BID	EA MODEL: 1413	\$ 21.09000
		TERRY'S UNIFORMS BRAND: PROPPER SEE BID	EA MODEL: F5452-38-450	\$ 21.25000
		TERRY'S UNIFORMS BRAND: ATLANCO SEE BID	EA MODEL: 1413	\$ 22.38000
		UNIFORMS MANUFACTURING INC BRAND: PROPPER SEE BID	EA MODEL: F5302-38	\$ 24.57000
		GULF STATES DISTRIBUTORS INC BRAND: ATLANCO SEE BID	EA MODEL: 1413	\$ 26.50000
		BOB BARKER CO INC BRAND: TRU-SPEC SEE BID	EA MODEL: 1367	\$ 30.75000
00002	200-72-090597	SHIRT, BDU, LONG SLEEVE, 65% POLYESTER/ 35% COMBED COTTON, RIPSTOP MATERIAL, 2	EA	
		AZARS UNIFORMS INC BRAND: ATLANCO SEE BID	EA MODEL: 1431	\$ 20.45000
		TERRY'S UNIFORMS BRAND: PROPPER SEE BID	EA MODEL: F5452-38-450	\$ 21.25000
		AWARD EXCELLENCE COMPANY LLC BRAND: ATLANCO SEE BID	EA MODEL: 1413	\$ 23.59000

		GT DISTRIBUTORS OF GA BRAND: ATLANTCO/TRU SPEC SEE BID	MODEL: 1413	EA	\$	24.56000
		UNIFORMS MANUFACTURING INC BRAND: PROPPER SEE BID	MODEL: F5302-38	EA	\$	24.57000
		TERRY'S UNIFORMS BRAND: ATLANCO SEE BID	MODEL: 1413	EA	\$	25.50000
		GULF STATES DISTRIBUTORS INC BRAND: ATLANCO SEE BID	MODEL: 1413	EA	\$	29.25000
		BOB BARKER CO INC BRAND: TRU-SPEC SEE BID	MODEL: 1367	EA	\$	32.00000
00003	200-72-090595	SHIRT, BDU, LONG SLEEVE, 100% COMBED COTTON, RIPSTOP MATERIAL, 4 POCKET DE-		EA		
		TERRY'S UNIFORMS BRAND: PROPPER SEE BID	MODEL: F5454-55-001	EA	\$	17.88000
		GT DISTRIBUTORS OF GA BRAND: ATLANCO/TRU SPEC SEE BID	MODEL: 1532	EA	\$	20.13000
		UNIFORMS MANUFACTURING INC BRAND: PROPPER SEE BID	MODEL: F5454-55	EA	\$	20.67000
		TERRY'S UNIFORMS BRAND: SEE BID	MODEL:	EA	\$	21.12000
		AWARD EXCELLENCE COMPANY LLC BRAND: ATLANCO SEE BID	MODEL: 1532	EA	\$	21.55000
		AZARS UNIFORMS INC BRAND: ATLANCO SEE BID	MODEL: 1532	EA	\$	23.50000
		GULF STATES DISTRIBUTORS INC BRAND: ATLANCO SEE BID	MODEL: 1532	EA	\$	24.90000
		BOB BARKER CO INC BRAND: PROPPER SEE BID	MODEL: F5454-55	EA	\$	30.75000
00004	200-72-090595	SHIRT, BDU, LONG SLEEVE, 100% COMBED COTTON, RIPSTOP MATERIAL, 4 POCKET DE-		EA		
		TERRY'S UNIFORMS BRAND: PROPPER SEE BID	MODEL: F5454-55-001	EA	\$	17.88000
		UNIFORMS MANUFACTURING INC		EA	\$	20.67000

		BRAND: PROPPER SEE BID	MODEL: F5454-55		
		GT DISTRIBUTORS OF GA BRAND: ATLANCO/TRU-SPEC SEE BID	MODEL: 1532	EA	\$ 23.29000
		TERRY'S UNIFORMS BRAND: ATLANCO SEE BID	MODEL: 1532	EA	\$ 24.25000
		AZARS UNIFORMS INC BRAND: ATLANCO SEE BID	MODEL: 1532	EA	\$ 24.50000
		AWARD EXCELLENCE COMPANY LLC BRAND: ATLANCO SEE BID	MODEL: 1532	EA	\$ 24.92000
		GULF STATES DISTRIBUTORS INC BRAND: ATLANCO SEE BID	MODEL: 1532	EA	\$ 28.00000
		BOB BARKER CO INC BRAND: PROPPER SEE BID	MODEL: F5454-55	EA	\$ 32.00000
00005	200-72-090596	PANTS, BDU 65% POLYESTER/35% COMBED COTTON, RIPSTOP MATERIAL, TWO NEEDLE		PR	
		AZARS UNIFORMS INC BRAND: ATLANCO SEE BID	MODEL: 1584	PR	\$ 19.45000
		TERRY'S UNIFORMS BRAND: PROPPER SEE BID	MODEL: F5201-38-450	PR	\$ 21.25000
		GULF STATES DISTRIBUTORS INC BRAND: ATLANCO SEE BID	MODEL: 1335	PR	\$ 22.70000
		TERRY'S UNIFORMS BRAND: ATLANCO SEE BID	MODEL: 1335	PR	\$ 23.62000
		GT DISTRIBUTORS OF GA BRAND: ATLANCO/TRU-SPEC SEE BID	MODEL: 1335	PR	\$ 23.92000
		AWARD EXCELLENCE COMPANY LLC BRAND: ATLANCO SEE BID	MODEL: 1335	PR	\$ 23.96000
		UNIFORMS MANUFACTURING INC BRAND: PROPPER SEE BID	MODEL: F5201-38	PR	\$ 24.57000
		BOB BARKER CO INC BRAND: TRU-SPEC SEE BID	MODEL: 1335	PR	\$ 25.75000
00006	200-72-090596	PANTS, BDU 65% POLYESTER/35% COMBED COTTON, RIPSTOP MATERIAL, TWO NEEDLE		PR	

		AZARS UNIFORMS INC BRAND: ATLANCO SEE BID	MODEL: 1584	PR	\$	20.45000
		TERRY'S UNIFORMS BRAND: PROPPER SEE BID	MODEL: F5201-38-450	PR	\$	21.25000
		UNIFORMS MANUFACTURING INC BRAND: PROPPER SEE BID	MODEL: F5201-38	PR	\$	24.57000
		GULF STATES DISTRIBUTORS INC BRAND: ATLANCO SEE BID	MODEL: 1335	PR	\$	25.70000
		AWARD EXCELLENCE COMPANY LLC BRAND: ATLANCO SEE BID	MODEL: 1335	PR	\$	25.96000
		TERRY'S UNIFORMS BRAND: ATLANCO SEE BID	MODEL: 1335	PR	\$	26.75000
		BOB BARKER CO INC BRAND: TRU-SPEC SEE BID	MODEL: 1335	PR	\$	27.00000
		GT DISTRIBUTORS OF GA BRAND: ATLANCO/TRU-SPEC SEE BID	MODEL: 1335	PR	\$	28.35000
00007	200-72-090594	PANTS, BDU, 100% COMBED COTTON, RIPSTOP MATERIAL, TWO NEEDLE		PR		
		TERRY'S UNIFORMS BRAND: PROPPER SEE BID	MODEL: F5201-55-001	PR	\$	17.88000
		AWARD EXCELLENCE COMPANY LLC BRAND: ATLANCO SEE BID	MODEL: 1523	PR	\$	18.79000
		GULF STATES DISTRIBUTORS INC BRAND: ATLANCO SEE BID	MODEL: 1523	PR	\$	19.50000
		TERRY'S UNIFORMS BRAND: ATLANCO SEE BID	MODEL: 1523	PR	\$	19.88000
		GT DISTRIBUTORS OF GA BRAND: ATLANCO/TRU-SPEC SEE BID	MODEL: 1523	PR	\$	20.13000
		UNIFORMS MANUFACTURING INC BRAND: PROPPER SEE BID	MODEL: F5201-55	PR	\$	20.67000
		AZARS UNIFORMS INC BRAND: ATLANCO SEE BID	MODEL: 1523	PR	\$	24.50000

		BOB BARKER CO INC BRAND: PROPPER SEE BID	MODEL: F5201-55	PR \$	25.75000
00008	200-72-090594	PANTS, BDU, 100% COMBED COTTON, RIPSTOP MATERIAL, TWO NEEDLE		PR	
		TERRY'S UNIFORMS BRAND: PROPPER SEE BID	MODEL: F5201-55-001	PR \$	17.88000
		UNIFORMS MANUFACTURING INC BRAND: PROPPER SEE BID	MODEL: F5201-55	PR \$	20.67000
		AWARD EXCELLENCE COMPANY LLC BRAND: ATLANCO SEE BID	MODEL: 1523	PR \$	22.35000
		TERRY'S UNIFORMS BRAND: ATLANCO SEE BID	MODEL: 1523	PR \$	23.00000
		GT DISTRIBUTORS OF GA BRAND: ATLANCO/TRU-SPEC	MODEL: 1523	PR \$	23.29000
		GULF STATES DISTRIBUTORS INC BRAND: ATLANCO SEE BID	MODEL: 1523	PR \$	23.50000
		AZARS UNIFORMS INC BRAND: ATLANCO SEE BID	MODEL: 1523	PR \$	25.50000
		BOB BARKER CO INC BRAND: PROPPER SEE BID	MODEL: F5201-55	PR \$	27.00000